

Mohammad Aslam v. State of U.P. — recovery after 20-year disconnection relegated to clause 6.5

High Court of Judicature at Allahabad · Division Bench · 23 May 2022 · Writ-C No. 33546 of 2021 · Writ-C No. 33546 of 2021 · Writ disposed; petitioner relegated to a clause 6.5 objection with a short stay of coercive action.

HEADNOTE

A writ seeking quashing of a 2021 electricity recovery notice, issued nearly twenty years after alleged permanent disconnection, was disposed of without deciding merits. The High Court relegated the consumer to an objection under clause 6.5 of the U.P. Electricity Supply Code, 2005, directed a time-bound decision after hearing, and stayed coercive action for eight weeks or until disposal of the objection, whichever was earlier.

FACTUAL SUMMARY

Mohammad Aslam petitioned the Allahabad High Court to quash a recovery notice dated 12 February 2021 issued by the electricity licensee (respondent no. 2). He contended that his electricity connection had been permanently disconnected on 17 October 2001 and that the demand was being raised nearly twenty years later. Counsel for the licensee stated on instructions that the petitioner could file an objection to the demand before respondent no. 2 within two weeks, to be considered and decided in accordance with law.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-dispute-relegated-to-clause-6.5

HOLDING

Without expressing any opinion on merits, a writ challenging an electricity recovery notice is disposed of by granting liberty to file an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 before the licensee officer within two weeks, to be decided in accordance with law within four weeks after reasonable opportunity of hearing; coercive action on the impugned demand is stayed for eight weeks or until disposal of the objection, whichever is earlier. ¶ 5-6

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The Court declined to quash the recovery notice on merits and disposed of the writ by relegating the petitioner to a clause 6.5 objection before respondent no. 2. ¶ 5

6.5-representation-as-appropriate-remedy Licensee counsel's statement that an objection to the demand could be filed and decided in accordance with law was accepted as the appropriate statutory path under Para 6.5. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE 12 FEBRUARY 2021 RECOVERY NOTICE AND WHETHER A DEMAND COULD BE RAISED NEARLY TWENTY YEARS AFTER PERMANENT DISCONNECTION ON 17 OCTOBER 2001

The Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 5